successor in interest and that “[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.” *Id*.

The supporting declaration filed by the Successor-in-Interest here complies with those requirements. See Declaration of Belkis Leal Hernandez filed February 9, 2026, ¶¶1-6.

<u>Disposition</u>

The Court finds and rules as follows:

1. The Motion to Substitute is GRANTED.
2. The moving party’s submitted form of order will be entered by the Court.

9. 9:00 AM CASE NUMBER: C25-03031
CASE NAME: JOHN KEYS VS. DOES 1-50, INCLUSIVE
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: BONNEY SERVICES WEST, LLC
****TENTATIVE RULING:****

Defendant's motion to compel arbitration and for a stay is **GRANTED**. Plaintiff John A. Keys is ordered to arbitrate his claims against Defendant Bonney Services West, LLC. Under the agreement's delegation clause, the arbitrator shall determine whether this action or any part of it is arbitrable.

The Court hereby **STAYS** the entire action pending the conclusion of the arbitration proceeding, except that the Court sets an arbitration status conference on **December 7, 2026 at 9:00 a.m.** in Department 34. The parties shall file joint or separate statements regarding the status of the arbitration proceedings at least ten court days before the conference.

<u>Background</u>

On October 16, 2025, Plaintiff filed this action against "Bonney Plumbing, LLC, doing business as Bonney Plumbing, Sewer, Electrical, Heating & Air Conditioning," asserting nineteen causes of action arising from his employment as a commission-only salesperson, including wrongful termination and wage and hour violations. Plaintiff does not dispute that he signed an arbitration agreement covering his claims. Instead, he contends that Defendant's alleged failure to pay earned wages, provide written commission terms, and act in good faith constitutes a material breach that voids any obligation to arbitrate.

On December 1, 2025, Bonney Services West, LLC appeared in this action by filing this motion to compel arbitration and for a stay, contending that it has been erroneously sued as Bonney Plumbing, LLC. In support of the motion, Defendant submits an arbitration agreement signed by Plaintiff that identifies Plaintiff as "Employee" and "Bonnie Plumbing, HVAC & Electrical" as "Employer." (Guerrero Decl., Exh. A.)

Standard

Under Code of Civil Procedure section 1281.2, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate. A party moving to compel arbitration under Section 1281.2 must prove by a preponderance of the evidence that: (1) The parties entered into a written agreement to arbitrate; and (2) one or more of the claims at issue are covered by that agreement. (Code Civ. Proc., § 1281.2; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) If the moving party meets this burden, the burden shifts to the resisting party to prove by a preponderance of evidence a defense to enforcement of the agreement. (*Id*., at p. 1230.)

California Law favors the enforcement of valid arbitration agreements. (*Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 320; *In re Tobacco I* (2004) 124 Cal.App.4th 1095, 1103.) Any doubts to arbitration will be resolved against the party asserting a defense to arbitration, whether the issue is construction of contract language, waiver, delay or any other defense to arbitrability. (*Ericksen*, *supra*, 35 Cal.3d at p. 320; *In re Tobacco I*, *supra*, 124 Cal.App.4th at p. 1103.)

The Existence of an Agreement to Arbitrate

Under Code of Civil Procedure section 1281.2, the first question before the Court is whether there was an agreement to arbitrate, or a meeting of the minds. (*Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1169.)

"In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51.)

Defendant has attached an arbitration agreement signed by Plaintiff and dated January 30, 2023, in which the parties agree to arbitrate any dispute or legal claim arising from "(1) this agreement itself, and (2) the employment relationship (or the termination of the relationship)." (Guerrero Decl., Ex. A.) Defendant has met its initial burden. The burden now shifts to Plaintiff to identify a factual dispute as to the agreement's existence.

Plaintiff does not dispute that he signed the agreement. He raises three arguments against formation: (1) the absence of the employer's signature defeats mutual assent; (2) the agreement identifies the wrong employer entity; and (3) Defendant's alleged material breach of the employment relationship voids any obligation to arbitrate. None of these arguments is persuasive.

On the signature argument, Plaintiff relies on *Mitri v. Arnel Management Co.*, *supra*. *Mitri* is not on point. In that case, the employer moved to compel arbitration based on an arbitration clause in its employee handbook, which expressly stated that employees would be required to sign a separate arbitration agreement. No separate agreement was ever produced. The court held there was no agreement to arbitrate because the handbook itself contemplated a further signed agreement that never materialized. Here, by contrast, Defendant has produced a standalone arbitration agreement bearing Plaintiff's signature, authenticated by the declaration of Defendant's Director of Human Resources. The situation *Mitri* addressed is not present here.

As for the missing employer signature, a written arbitration agreement need not be signed by both parties to be binding. "The writing memorializing an arbitration agreement need not be signed by both parties in order to be upheld as a binding arbitration agreement." *(Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 176.) A nonsignatory may demonstrate its intent to be bound through conduct implying ratification or acceptance of the agreement. (*Ibid*.) Defendant has done precisely that by filing this motion to compel arbitration. Moreover, just as with any written agreement signed by one party, an arbitration agreement can be specifically enforced against the signing party regardless of whether the party seeking enforcement has also signed, provided that the party seeking enforcement has performed or offered to do so. (*Id.* at p. 177.)

As to the entity name issue, several different names appear throughout the record. Plaintiff sued "Bonney Plumbing, LLC, dba Bonney Plumbing, Sewer, Electrical, Heating & Air Conditioning." Bonney Services West, LLC appeared and identified itself as having been erroneously sued under that name. The HR Director's declaration identifies "Defendant" as "Bonney Services West, LLC dba Big Air Heating and Air Conditioning; and Bonney Plumbing, Electrical, Heating, and Air Conditioning." The arbitration agreement itself identifies the employer as "Bonnie Plumbing, HVAC & Electrical," a name that does not correspond to any registered California business entity, according to Plaintiff's Secretary of State search.

Plaintiff argues this discrepancy defeats formation. The record does not support that conclusion. Plaintiff's own tax records identify his employer as Bonney Services West, LLC, the same entity that appeared in this action and moves to compel arbitration. Plaintiff signed an agreement to arbitrate disputes with his employer, his own records confirm who that employer was, and that employer is the party now seeking to enforce the agreement. The presence of an imprecise or mistaken entity name in the agreement does not defeat formation under these circumstances, particularly where Plaintiff himself has acknowledged the agreement's existence. Further, Plaintiff's complaint alleges the agreement is "unenforceable because Defendants materially breached the [arbitration] contract before seeking to enforce its terms," an allegation that presupposes the agreement exists. Having taken that position, Plaintiff cannot now claim no agreement was formed in the first place simply because a variant entity name appears in it.

The Court finds that an agreement to arbitrate exists. As for Plaintiff's argument that Defendant's alleged material breach of the employment contract and/or alleged Labor Code violations voids the obligation to arbitrate, that is a challenge to the enforceability of the agreement rather than its formation, and falls within the delegation clause. Similarly, Plaintiff's unconscionability arguments go to the enforceability of the agreement and are also delegated to the arbitrator. Both are addressed below.

Delegation of Gateway Issues

Plaintiff argues the agreement is both procedurally and substantively unconscionable. On the procedural side, he argues the agreement was presented during onboarding without any opportunity to negotiate, that AAA rules were never provided, that the agreement identifies the wrong employer, that it was signed after the offer letter deadline, and that commission terms were absent from the underlying employment contract. He argues these factors reflect oppression and surprise sufficient to establish procedural unconscionability under *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111. On the substantive side, Plaintiff argues the agreement is one-sided because it preserves the employer's access to court for injunctive relief while restricting discovery, prohibits representative actions, delegates enforceability questions to the arbitrator, and limits statutory rights. He argues these features violate the minimum fairness standards required for employment arbitration agreements under *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83.

Parties to an arbitration agreement may delegate to the arbitrator questions regarding the enforceability of the agreement, and "can agree to arbitrate almost any dispute, even a dispute over whether the underlying dispute is subject to arbitration." (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 241.) "There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (*Id*. at p. 242.) Both prerequisites are satisfied here. The arbitration agreement includes a clear and unmistakable delegation clause. It provides:

> ARBITRATOR DECIDES ARBITRABILITY. The Parties agree that, to the fullest extent allowed under the Federal Arbitration Act or, if inapplicable, the California Arbitration Act, that the Arbitrator, and not the court, has the exclusive jurisdiction and power to decide whether this agreement is legally valid or enforceable as a contract (including whether it is 'unconscionable' or in violation of public policy). The Arbitrator also has the exclusive jurisdiction and power to decide whether a claim or legal dispute is covered by this Agreement, to the fullest extent allowed under the Federal Arbitration Act or, if inapplicable, the California Arbitration Act. However, the Arbitrator does not have the authority to expand the scope of covered Claims as described and limited in Paragraphs 1 and 2.

(Guerrero Decl., Ex. A, § 3.)

This provision unmistakably assigns to the arbitrator the power to determine whether the agreement is unconscionable or otherwise unenforceable. "If the party's challenge is directed to the agreement as a whole, even if it applies equally to the delegation clause, the delegation clause is severed out and enforced; thus, the arbitrator, not the court, will determine whether the agreement is enforceable. In contrast, if the party is making a specific challenge to the delegation clause, the court must determine whether the delegation clause itself may be enforced." (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1559-1560, citing *Rent-A-Center*, 561 U.S. at 70.)

Plaintiff’s challenge is to the arbitration agreement as a whole. To the extent Plaintiff's challenges could be read to apply to the delegation clause specifically, they fail. "[A]rbitration contracts imposed as a condition of employment are typically adhesive." (*Davis v. Kozak* (2020) 53 Cal.App.5th 897, 906.)

"By itself, however, adhesion establishes only a 'low' degree of procedural unconscionability." (*Id*. at p. 907.) Any procedural unconscionability in this case is diminished by paragraph 12, which stated that Plaintiff was not required to sign the agreement to get or keep his job. Where procedural unconscionability is low, Plaintiff must make a correspondingly greater showing of substantive unconscionability. (*Serafin*, *supra*, 235 Cal.App.4th at p. 185.) Plaintiff makes no cogent argument that the delegation clause itself is substantively unconscionable, nor does the record support such a finding.

Disposition

Defendant's motion to compel arbitration is **GRANTED**. Plaintiff is ordered to arbitrate his claims against Defendant Bonney Services West, LLC. Under the agreement's delegation clause, the arbitrator shall determine whether this action or any part of it is arbitrable.

The Court **STAYS** the entire action pending the conclusion of the arbitration proceeding, except that the Court sets an arbitration status conference on **December 7, 2026 at 9:00 a.m.** in Department 34. The parties shall file joint or separate statements regarding the status of the arbitration proceedings at least ten court days before the conference.

10. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES - CONT. FROM 3/30/26 PER E-FILED STIP SIGNED BY JUDGE 3/5/26**
FILED BY: GARAVENTA, SILVIO
****TENTATIVE RULING:****

Before the Court is the continued hearing on a motion by plaintiff Silvio Garaventa, Jr., for payment of expenses, including attorneys' fees, pursuant to Corporations Code section 2000 after the parties' submission of supplemental papers requested by the Court. For the reasons set forth, the motion is **granted in part and denied in part**, as set forth below.

Procedural Background

On August 13, 2025, after the deadline for the buy-out passed, plaintiff Silvio Garaventa filed his motion for payment of expenses under Corporations Code section 2000(c). In his original motion, Garaventa sought judgment for attorneys' fees and costs of $184,778.94, including $148,781.25 in attorneys' fees, $14,247.69 in costs, and $21,750 for one-half the amount Pine Hollow paid for the appraisals valuing the corporation. (MPA ISO Mot. p. 13, ll. 10-20.)

Garaventa's motion for payment of expenses under Corporations Code section 2000 was originally set for hearing on January 22, 2026. Azari opposed the motion on a number of grounds. The Court issued a detailed tentative ruling for that hearing, which became the order of the Court as reflected in the Court's January 22, 2026 Minute Order. The Court requested supplemental papers from Garaventa addressing certain specific issues, and the Court provided Azari an opportunity to file a supplemental response.

In the Court's prior ruling, the Court addressed and tentatively resolved a number of the legal and